SYNTHETIC TRAINING RECORD — NOT FILED — ALL FACTS AND IDENTIFIERS ARE FICTIONAL

UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF WEST VIRGINIA

Proceeding: Movant's factual statement.

Asterglen Freight Software, Inc., Plaintiff, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Defendants.

Civil Action No. SYN-NDWV-25-CV-0618

Copper Statement of Undisputed Material Facts

Filed November 3, 2025 — District ECF No. 44

1. Asterglen and Copper Kestrel entered the Pilot License on April 15, 2024. The executed terminal schedule identified twelve locations.
2. Section 9.2 states that before either party terminates for material breach or seeks breach damages, that party will provide written notice describing the breach and allow fifteen calendar days to cure.
3. Asterglen's complaint asserts Count I against Copper Kestrel for alleged breach and requests $480,000.
4. Count II asserts an interference claim against Meridian Silt and requests $360,000 while avoiding duplicate recovery.
5. Copper Kestrel asserts a counterclaim arising from Asterglen's immediate service disablement and claims $120,000.
6. District ECF No. 42 seeks judgment only on Count I. It does not seek adjudication of Count II or the counterclaim.
7. The parties have distinct legal contentions about authorization, performance, notice, cure, causation, and damages. This statement identifies as undisputed only the limited propositions supported without choosing between conflicting July 8 recollections.

Agreement and June writings

8. On June 3, 2024, Copper Kestrel proposed a change order for twenty-nine terminals in addition to the twelve listed in the license.
9. Asterglen did not sign the June 3 proposal. The proposed commercial amendment remained incomplete.
10. Asterglen sent a written response on June 10 setting conditions for a controlled load test while commercial review continued.
11. The parties dispute whether later activity remained within those written conditions. They do not dispute the existence or date of the June 10 response.
12. Copper Kestrel retained Meridian under a statement of work dated June 14. That document described integration and readiness tasks for the proposed deployment.
13. Asterglen was not a party to Meridian's statement of work. Meridian possessed no written authority in that document to amend the Pilot License for Asterglen.
14. Neither the unsigned June 3 proposal, the June 10 conditions, nor the June 14 statement of work deleted Section 9.2's notice-and-cure text.
15. Copper Kestrel contends that testing and later oral communications permitted temporary continuation. Asterglen denies permission for expanded production. The motion does not require resolution of that dispute.

Provisioning through July 1

16. Administrative and technical work resulted in forty-one provisioned BeaconRoute terminal identifiers by July 1, 2024.
17. The total consisted of twelve identifiers associated with the executed license schedule and twenty-nine associated with the proposed additions.
18. Copper Kestrel personnel requested or approved the administrative provisioning. Meridian supplied integration inputs and validation assistance. Asterglen's platform processed the requests.
19. The parties agree that identifier creation does not, by itself, describe every event's business purpose. The activity tables include configuration checks, load-test events, authentication, queries, and dispatch interactions.
20. Asterglen contends the overall configuration exceeded the June 10 limits. Copper Kestrel contends current activity temporarily continued with Asterglen's knowledge. Meridian states that it followed Copper Kestrel's technical instructions while knowing commercial approval remained open.
21. No party identifies any terminal beyond the forty-one-location configuration during the period at issue.
22. The existence of forty-one identifiers is not disputed. Whether particular activity was authorized and how oral statements affected the parties' understanding are disputed.
23. For purposes of the notice-and-cure motion, Copper Kestrel assumes that Asterglen can establish activity outside its written authorization.

July 8 conference and conflicting accounts

24. Representatives of Asterglen, Copper Kestrel, and Meridian participated in a videoconference on July 8, 2024.
25. No recording or agreed verbatim transcript of the conference exists.
26. Copper Kestrel's operations representative recalls that Asterglen allowed continuation of existing activity while paperwork was completed, subject to monitoring and no further additions.
27. Asterglen's corporate representative recalls authorization only for continuation of a controlled test under the June 10 written conditions and denies approval of expanded production.
28. Meridian's engineer recalls permission to continue the current test but did not understand the statement as an executed amendment or permanent license grant.
29. Contemporaneous notes use abbreviated phrases including “continue current test” and “paperwork open.” They do not define the complete scope of permissible activity.
30. No participant testified that Section 9.2 was expressly waived on July 8.
31. No authorized signatory executed the proposed change order during or after the conference.
32. The occurrence and date of the call are undisputed; its wording, meaning, and scope remain disputed. Copper Kestrel does not offer its account as an undisputed fact necessary to judgment on Count I.

Audit, termination, and demand

33. Asterglen completed a compliance audit on July 18, 2024. The audit identified forty-one provisioned identifiers and questioned whether activity at the twenty-nine additions exceeded the written test conditions.
34. The audit was an internal assessment. It did not provide Copper Kestrel a written notice specifying a Section 9.2 cure due fifteen calendar days later.
35. Asterglen's corporate representative testified that no contractual breach notice issued between the audit and July 22.
36. On July 22, Asterglen disabled a shared staging credential, declared immediate termination for asserted material breach, and demanded $480,000.
37. The July 22 communication did not instruct Copper Kestrel to return to twelve terminals by a future date.
38. It did not state that termination or damages would be withdrawn after successful cure.
39. It allowed zero days between notice of the asserted breach and the announced remedies.
40. Copper Kestrel objected to the immediate action and denied that the contractual sequence had been followed.
41. The parties disagree about whether Asterglen could be excused from the cure clause. They do not dispute that Section 9.2 contains no express sentence creating a futility exception.

Feasibility and work through July 25

42. Copper Kestrel's personnel assessed that the configuration could be returned to the twelve licensed terminals through an orderly technical sequence.
43. The sequence involved freezing new provisioning, mapping active sessions, completing or transferring necessary updates, separating shared routing references, disabling twenty-nine identifiers, and validating the twelve that remained.
44. Meridian continued technical work through July 25. Its tickets identify inventory, mitigation, session closure, continuity, reduction, and validation tasks.
45. The parties dispute the legal characterization of post-July 22 access. No testimony identifies a new terminal added after the termination communication.
46. A later controlled test began with forty-one identifiers and completed the reduction within three business days.
47. The test concluded with twelve active identifiers, no loss of completed shipment information, and successful continuing-terminal validation.
48. One cached-route warning arose during testing, was corrected, and did not prevent timely completion.
49. The declarant identified differences between the preserved test environment and live July traffic. The declarant nevertheless concluded that orderly reduction was technically feasible within three business days.
50. Asterglen did not offer a fifteen-calendar-day cure interval in which Copper Kestrel could attempt that process before termination and demand.

Damages, overlap, and filing relationships

51. Asterglen's $480,000 demand combines asserted contract value and response-related costs. Count I seeks that amount from Copper Kestrel.
52. Copper Kestrel's counterclaim ledger totals $120,000: $36,000 emergency dispatch labor, $28,000 temporary routing services, $24,000 customer credits, and $32,000 technical restoration and validation.
53. Asterglen disputes causation, reasonableness, allocation, and liability for the counterclaim. The claim remains pending.
54. Count II against Meridian also remains pending and concerns the June and July communications, the configuration, Meridian's understanding, and alleged interference.
55. The unresolved claims share witnesses and documents with Count I and could present a potential offset if opposing monetary awards were later entered.
56. District ECF No. 43 has five attachments: the provisioning ledger at 43-1, July 8 materials at 43-2, July 18 audit at 43-3, July 22 through July 25 chain at 43-4, and Asterglen corporate deposition excerpts at 43-5.
57. Copper Kestrel requests dismissal with prejudice of Count I only and no adjudication of the remaining liabilities.